

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant contends that plaintiff Therapeutic Herbal Company, LLC has engaged in discovery and motion practice despite the Franchise Tax Board suspending its corporate status. However, Code of Civil Procedure section 128.5 does not apply to discovery misuse. And, defendant does not identify any motion that plaintiff Therapeutic Herbal Company, LLC filed whereby defendant thereafter complied with Code of Civil Procedure section 128.5's 21-day safe harbor provision. Finally, defendant does not identify any specific misuses of the discovery process to justify Code of Civil Procedure sections 2023.010 and 2023.030 sanctions. Accordingly, defendant's motion is denied.

8. S-CV-0048670 CAL. ED. FUND v. CAL. PREPARATORY ACAD.

The motion to appoint receiver is dropped from calendar as the court granted the motion on April 24, 2026, after the hearing was advanced by ex parte order.

9. S-CV-0048766 BRANDT, MARGUERITE v. DIAMOND K ESTATES

The motion for summary judgment is dropped from calendar in light of the full dismissal with prejudiced filed with the court on April 28, 2026.

10. S-CV-0051202 KHACHADOURIAN, GILBERT v. COOK, RICHARD

Defendants Richard Noah Cook and Mary Melody Cook's Motion to Quash
Deposition Subpoena for Personal Appearance and Production of Documents and
Things Directed to Bob Eynck

Preliminary Matters

The court agrees to consider Jeffrey Ochrach's declaration filed in response to defendants' reply brief.

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Ruling on Motion

Defendants move to quash a deposition subpoena for personal appearance and production of documents and things directed to Bob Eynck. (Code Civ. Proc., § 1987.1.) The court first observes the motion is moot as to the four categories of documents sought because plaintiffs withdrew those requests.

Nonetheless, defendants seek to quash the subpoena in its entirety because Bob Eynck is a privileged consultant; plaintiffs should not be allowed to question Bob Eynck about privileged materials; and the privileged documents in plaintiffs' possession should be subject to a protective order.

Defendants' motion is denied as to their first contention. Plaintiffs seek to depose Bob Eynck in his capacity as a percipient witness to the alleged flooding and drainage issues surrounding the property at issue in 2017 not in his capacity as a retained consulting expert.

Defendants' motion is also denied as to their second and third contentions. Defendants, as the moving party, bear the initial burden of showing preliminary facts to support the attorney-client and attorney work product privilege. (*Venture Law Group v. Superior Court* (2004) 118 Cal.App.4th 96, 102.) If they meet that burden then the burden shifts to plaintiffs to show the "privilege does not apply, an exception exists, or there has been an express or implied waiver. (*Ibid.*) Here, defendants meet their initial burden that the email correspondence between their former counsel of record, Bob Eynck, and defendant Richard Cook are subject to the attorney-client and attorney work product privilege. Plaintiffs thereafter meet their burden to establish defendants waived their privileges when defendant Richard Cook did not object to the privileged materials being introduced and discussed at his deposition. (Evid. Code, § 912.) Nor is a protective order proper given the privileges have been waived.

Accordingly, defendants' motion is denied in its entirety. Plaintiffs' request for sanctions are denied.

Plaintiffs Motion to Compel the Attendance and Testimony of Bob Eynck at Deposition; For a Determination that No Privilege Protects His Testimony; or for Appointment of a Discovery Referee and For Monetary Sanctions

Plaintiffs move the court to compel the attendance and testimony of Bob Eynck at deposition. (Code Civ. Proc., § 1987.1.) The court finds the deposition of Bob

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Eynck is in his capacity as a percipient witness and thus no privileges apply to his reports and other documents related to the flooding and drainage issues surrounding the property at issue in 2017. Moreover, the email correspondences are not subject to the attorney-client and attorney work product privileges. Defendants meet their initial burden that the email correspondence between their former counsel of record, Bob Eynck, and defendant Richard Cook are subject to the attorney-client and attorney work product privilege. (*Venture Law Group v. Superior Court* (2004) 118 Cal.App.4th 96, 102.) Plaintiffs thereafter meet their burden to establish defendants waived their privileges when defendant Richard Cook did not object to the privileged materials being introduced and discussed at his deposition. (*Ibid.*; Evid. Code, § 912.)

Plaintiffs' motion is therefore granted. Bob Eynck shall appear and provide deposition testimony, without producing any documents, within seven (7) days after service of the order after hearing.

Plaintiffs' request for sanctions is denied.

11. S-CV-0052012 MENDIOLA, VENANZIO v. HYUNDAI OF ROSEVILLE

Plaintiff's Motion for an Order Approving Settlement of Claims Brought Pursuant to the Private Attorneys General Act of 2004, Awarding Attorneys' Fees, Costs, Service Payment, and Reimbursement of Settlement Administration Expenses

The unopposed motion is granted. The court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.) The court has carefully reviewed and considered the PAGA Settlement Agreement and plaintiff's moving papers filed in connection with the motion. The court has also reviewed the supplemental declaration of Justin Lo. The court determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

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